



March 8, 2023

Representative Anna Moeller
255-S Stratton Office Building
Springfield, IL 62706

Representative Lamont J. Robinson, Jr.
Chairperson of the Illinois Cybersecurity, Data Analytics, & IT Committee
286-S Stratton Office Building
Springfield, IL 62706

Representative Edgar Gonzalez, Jr.
Vice-Chairperson of the Illinois Cybersecurity, Data Analytics, & IT Committee
240-W Stratton Office Building
Springfield, IL 62706

RE: HB 3880 – Illinois Children’s Privacy Protection and Parental Empowerment Act - Oppose

Dear Representative Moeller, Chairperson Robinson, and Vice-Chairperson Gonzalez:

We write to respectfully request that you **reconsider HB 3880**, the “Children’s Privacy Protection and Parental Empowerment Act.”¹ While we strongly agree with protecting Illinois’ children online, this bill would subject an excessively large range of companies to severe requirements and restrictions that would hamper innovation and hurt Illinois consumers.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product (“GDP”) in 2020.² Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with you further issues with the bill outlined here.

HB 3880 is modeled after legislation in California that is currently subject to legal scrutiny. Illinois should not advance a bill that is based on legislation being challenged in the courts.³ HB 3880 contains several provisions that very likely abridge First Amendment and Fourth Amendment protections, as well as the Due Process and Commerce Clause of the United States Constitution. Challenges to a very similar law enacted in California are already underway in California courts.⁴

¹ Illinois HB 3880 (Gen. Sess. 2023), located [here](#).

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf.

³ Complaint, *NetChoice LLC v. Bonta* (N.D. Cal., Dec. 14, 2022), located [here](#).

⁴ *Id.*

Illinois' General Assembly should not follow in California's footsteps by passing a law that abridges minors' constitutional protections and risks being invalidated.

HB 3880's definition of child as "a consumer or consumers who are under 18 years of age" goes far beyond other definitions in privacy laws. The Children's Online Privacy Protection Act (COPPA) defines a child as an individual under 13 years of age, and no other state privacy law currently defines a child as under 18 (U-18). This broad definition of a "child" in HB 3880 would result in an environment where a toddler may be treated the same as a student about to enter college.

In addition, HB 3880 sweeps in any property that displays even minimal advertising that could appeal to U-18s, which will result in nearly every company falling under the bill's reach. For example, the bill could be read to apply to the online offerings of clothing retailers, professional sports organizations, and restaurants, simply because it's possible 17-year-olds may access them. In addition, to help ensure "children" are not "likely" to access an online service, product or feature, businesses may require visitors to pass through "age gates" for access. Anyone attempting to access a website would have to provide specific age information to the site owner before reading its contents. The legislation would significantly hamper an individual's ability to seamlessly move from one website to the next to reach desired information or content. Moreover, the bill's onerous standards and broad reach will severely hinder companies from doing business in Illinois and degrade the consumer experience online.

HB 3880 would deprive Illinois' youth of access to and benefit from the Internet. The bill would prevent Illinois minors from accessing a wealth of information that otherwise would be at their fingertips. Shrinking the variety of content, viewpoints, voices, and information 17-year-olds can reach will not protect them, but instead will ensure they will not have the same experience with the Internet as their contemporaries living in other states, such as Indiana or Missouri. HB 3880 will turn off or severely limit Illinois minors' access to the greatest informational resource in modern history.

HB 3880's definition of "child" to include teens will make them lose access to future opportunities. The bill prohibits use of personal information about a child for any reason other than the reason the personal information was collected. This prohibition could functionally end access to information for Illinois high school seniors, which would deprive them of the ability to learn about colleges, trade programs, military recruitment, employment opportunities, and a myriad of other opportunities for their future. Illinois should not enact a law that could hurt minors' ability to plan for their futures.

While we understand the need to protect children as they navigate the Internet, HB 3880 is the wrong way to accomplish this goal. The over-broad definitions included in the bill mean that while intended to protect children, the bill will apply to many websites and applications with intended audiences outside of this scope. Imposing the bill's requirements onto most of the Internet will decrease innovation, remove vital benefits of the Internet for children and teens, harm the consumer experience, and hamper the data-driven economy.



We and our members support privacy protections for children. We believe, however, that HB 3880 takes the wrong approach to such protections. We therefore respectfully ask you to decline to advance the bill.

Thank you in advance for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
Executive Vice President, Government Relations
American Association of Advertising Agencies, 4A's
202-355-4564

Lartase Tiffith
Executive Vice President for Public Policy
Interactive Advertising Bureau
212-380-4700

Clark Rector
Executive VP-Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria, CIPP, CISSP
Executive Director
Digital Advertising Alliance
347-770-0322

CC: Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP